

2. The Contractor also agrees to include these requirements in each subcontract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

40. ENTIRETY OF AGREEMENT

This Agreement consisting of 10 pages, and Exhibits "A", "B", "C" consisting of 5, 1, and 1 pages respectively, and submitted proposal with negotiated changes, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

Attest:

Carol Intlekofer,
Cheyenne City Clerk

**Richard L. Kaysen, Mayor of Cheyenne on behalf
of the Cheyenne MPO**

By: _____

Date: _____

**Ann Bowers, P.E., PTOE, Senior Associate
Fehr & Peers
621 17th Street, Suite 2301
Denver, CO 80293**

By: _____

Date: _____